DERRICK LAMONT BEVERLY
Defendant, In Propria Persona
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FILED
Superior Court of California
County of Los Angeles
DEC 11 2025
David W. Slayton, Executive Officer/Clerk of Court
By: F. Ochoa, Deputy

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

LIMITED CIVIL DIVISION

Ex Parte

FOX NORMANDIE APARTMENTS, LP,

Plaintiff,

vs.

DERRICK LAMONT BEVERLY

DERRICK L. BEVERLY, and DOES 1–10,

) Case No.: 22STUD06657
) UNLAWFUL DETAINER
) Dept. 91 Judge Hon: Mike Madokoro
) December 11 2025 1:30 p.m.
)

UNLAWFUL DETAINER

NOTICE OF MOTION AND MOTION TO VACATE DEFAULT AND DEFAULT JUDGMENT (CCP §§ 473(b), 473(d));

NOTICE OF MOTION AND MOTION FOR RELIEF FROM FORFEITURE (CCP § 1179);

EMERGENCY EX PARTE APPLICATION FOR TEMPORARY STAY OF ENFORCEMENT OF JUDGMENT AND ANY WRIT OF POSSESSION (CCP §§ 918, 1179);

RELOCATION DEMAND AND NOTICE OF CLAIM (LACC §§ 8.52.090–.130);

MEMORANDUM OF POINTS AND AUTHORITIES;

DECLARATION OF DERRICK LAMONT BEVERLY;

[PROPOSED] ORDERS

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

CASE NO.: 22STUD06657DEPT.: 91JUDGE: HON. MIKE H. MADOKOROEX PARTE HEARING DATE: DECEMBER 9, 2025EX PARTE HEARING TIME: 1:30 P.M.UNLAWFUL DETAINERNOTICE OF MOTION AND MOTION TO VACATE DEFAULT AND DEFAULT JUDGMENT(CCP §§ 473(B), 473(D));NOTICE OF MOTION AND MOTION FOR RELIEF FROM FORFEITURE (CCP § 1179);EMERGENCY EX PARTE APPLICATION FOR TEMPORARY STAY OF ENFORCEMENT OF JUDGMENT AND ANY WRIT OF POSSESSION(CCP §§ 918, 1179);RELOCATION DEMAND AND NOTICE OF CLAIM(LACC §§ 8.52.090–.130);MEMORANDUM OF POINTS AND AUTHORITIES;DECLARATION OF DERRICK LAMONT BEVERLY;[PROPOSED] ORDERS - 2

PLEASE TAKE NOTICE that on **December 9th, 2025**, at **1:30 p.m.**, or as soon thereafter as the matter may be heard in Department **91** of the above-entitled Court, located at **111 North Hill Street, Los Angeles, California 90012**, **Defendant and former tenant DERRICK LAMONT BEVERLY ("Defendant")**, in propria persona, will and hereby does move the Court for the following relief:

1. **MOTION TO VACATE DEFAULT AND DEFAULT JUDGMENT (CCP §§ 473(b), 473(d))**

   An order setting aside the **default** and **default judgment** entered on or about **November 29, 2022** in this action, on grounds of **mistake, inadvertence, surprise, and excusable neglect** under **CCP § 473(b)** and on grounds that the judgment is **void or voidable** due to constitutionally inadequate notice and service under **CCP § 473(d)**.

2. **MOTION FOR RELIEF FROM FORFEITURE (CCP § 1179)**

   An order granting **relief from forfeiture of Defendant's tenancy and related program/voucher rights**, recognizing the **extreme hardship** and disproportionate consequences of the forfeiture, and conditioning any ongoing relief on reasonable monetary or other terms as the Court deems just.

3. **EMERGENCY EX PARTE APPLICATION FOR TEMPORARY STAY OF ENFORCEMENT (CCP §§ 918, 1179)**

   On an **emergency ex parte basis**, an order **temporarily staying enforcement** of the default judgment and any **writ of possession** in this matter, including any collateral use of the judgment in housing-screening or agency contexts, pending full hearing and determination of the Motion to Vacate and Motion for Relief from Forfeiture.

4. **RELOCATION DEMAND AND NOTICE OF CLAIM (LACC §§ 8.52.090–.130)**

   An order recognizing that Defendant's displacement from **Fox Normandie Apartments** was of a type that **triggers relocation obligations** under applicable Los Angeles County/City ordinances (including **LACC §§ 8.52.090–.130**), that no relocation

assistance was provided, and that Defendant's **relocation claims and damages** are preserved. Defendant concurrently **serves and files a Relocation Demand and Notice of Claim** directed to Plaintiff and related entities, seeking relocation compensation and statutory remedies.

The motions and ex parte application are based on this Notice, the **Introduction** and **Memorandum of Points and Authorities** below, the **Declaration of Derrick LaMont Beverly** and attached exhibits (including lease documents, violation notice, default judgment, Notice to Vacate, Sheriff lockout evidence, Facebook Live screenshots, damages charts, and relocation/Section 8 materials), the **Bench Brief on Treatment of Self-Represented Unhoused Litigants (filed as Exhibit "BB" to prior ex parte filing)**, the **[Proposed] Orders** lodged concurrently, the court's file in this matter, and on such further oral and written evidence as may be presented.

Defendant has provided or will provide notice of the **Emergency Ex Parte** portion of this combined filing to Plaintiff and/or Plaintiff's counsel in accordance with **CRC 3.1203**, and will file a **Declaration re: Notice** pursuant to **CRC 3.1204**.

I. INTRODUCTION

This is the **core Fox Normandie master pleading**: it combines, in one unified document, Defendant's:

- **Motion to Vacate Default and Default Judgment (CCP §§ 473(b), 473(d));**
- **Emergency Ex Parte Application for Temporary Stay (CCP §§ 918, 1179);**
- **Motion for Relief from Forfeiture (CCP § 1179);** and
- **Relocation Demand and Notice of Claim (LACC §§ 8.52.090–.130).**

The case is **Fox Normandie Apartments, LP v. Derrick L. Beverly, Case No. 22STUD06657**, an unlawful detainer action that:

- Was filed after Defendant **completed a two-year supportive housing program** at Fox Normandie;
- Followed Defendant's **award of a Section 8 voucher** after his second lease term ended around **2019**;
- Resulted in a **default judgment** entered on or about **November 29, 2022**, without Defendant's meaningful participation;
- Led to a **Notice to Vacate** dated **January 4, 2023**;
- Culminated in a **Sheriff lockout on January 26, 2023**, which Defendant documented via **Facebook Live**, and which rendered him immediately **unhoused**.

Since January 26, 2023, Defendant has been **living on the street or in unstable temporary situations**, with the UD judgment functioning as a **structural barrier** to obtaining new housing and preserving his Section 8 pathway.

Defendant has not slept on his rights. He has:

- Prepared a **Motion to Vacate** laying out **service defects, excusable neglect, and due process failures**;
- Prepared a **Motion for Relief from Forfeiture** showing that the hardship is extreme and the alleged breaches are compensable, not warranting permanent forfeiture;
- Filed an **Emergency Ex Parte Application** seeking an immediate stay of enforcement;
- Developed a **damages framework** using a **daily housing-equivalent multiplier** of **$60–$80+ per day** across approximately **1,047 days** of homelessness (January 26, 2023 – December 8, 2025), yielding baseline housing-equivalent damages of about **$62,820–$83,760**, before adding medical, emotional, and civil-rights harms; and

- Drafted a **relocation demand** under **LACC §§ 8.52.090–.130**, asserting that his displacement was of the type for which relocation assistance is legally required.

This combined pleading asks the Court to do three big things and one critical side thing:

1. **Vacate** the default and default judgment (473(b)/(d));
2. **Stay** enforcement (918/1179) so the harm stops growing while the merits are heard;
3. **Relieve from forfeiture** (1179) so the Court can fashion equitable outcomes instead of all-or-nothing homelessness; and
4. **Recognize and preserve relocation rights**, and require Plaintiff to deal with Defendant's relocation claim rather than pretend it never existed.

II. FACTUAL BACKGROUND

A. Case and Program Background

- **Case Name:** Fox Normandie Apartments, LP v. Derrick L. Beverly
- **Case No.:** 22STUD06657
- **Court:** Superior Court of California, County of Los Angeles
- **Department:** 91
- **Judge:** Hon. Mike H. Madokoro
- **Type:** Residential Unlawful Detainer (UD)

Defendant entered Fox Normandie through a **supportive housing program** administered by **Fox Normandie Apartments, LP** and **A Community of Friends (ACOF)**, in coordination with **HACLA**. He successfully completed a **two-year program** and was subsequently **awarded a Section 8 voucher** after his second lease term ended in or around **2019**.

From that point forward, Defendant's occupancy was no longer a simple market lease. It was part of a **program-and-voucher ecosystem**, intended to stabilize him in permanent housing and prevent a return to homelessness.

At the time of the events giving rise to this UD case:

- There was **no active written lease** in the classic sense;
- Defendant's tenancy, however, was **continued and understood** within the program and voucher framework;
- Defendant reasonably believed he had **ongoing rights** as a voucher-linked tenant, subject to program rules, not a pure month-to-month at-will status.

B. Plaintiff's UD Theory: Damage and Nuisance

In the UD Complaint and related notices, Plaintiff alleged:

- **Intentional defacing of the premises**;
- **Damage to the elevator**;
- **Nuisance behavior** disturbing others.

These are summarized in a **multi-page violation notice (approx. 7 pages)** served on Defendant and attached to UD filings.

Defendant disputes these allegations. He contends they are:

- Factually **false or exaggerated**;
- Used as **pretext** to remove him in anticipation of Ellis-style withdrawal, redevelopment, or program restructuring;
- Not fairly tested in court because of procedural breakdown and default.

C. Default Judgment and Due Process Gaps

On or about **November 29, 2022**, a **default judgment** was entered against Defendant.

Defendant will testify and show in his declaration that:

- He did **not truly understand** that he needed to file a formal Answer within a strict timeframe;
- The mix of **program documents, housing authority communications, and legal papers** created confusion;
- He had **no attorney**, no legal navigator, and limited access to legal resources;
- Service and notice did not ensure **actual comprehension** for a vulnerable, self-represented tenant;
- The Court did not meaningfully inquire into his **program status, Section 8 rights, or risk of homelessness** before entering judgment.

In short, the judgment was entered while Defendant was **effectively sidelined**, not after a fair, adversarial, merits-based adjudication.

D. Sheriff Lockout and Immediate Homelessness

Following the default:

- Plaintiff caused a **Notice to Vacate** to issue, dated **January 4, 2023**.
- The **Los Angeles County Sheriff's Department** executed a **lockout on January 26, 2023**.
- Defendant **recorded the lockout via Facebook Live**, capturing:
    - Deputies enforcing the writ;
    - Management interactions;

- Defendant begging for clarity and fairness.
- After that date, Defendant had **nowhere to go** and became **unhoused**.

E. No Relocation Assistance; Section 8 Opportunity Lost

Given the nature of Defendant's tenancy (program-based, voucher-linked) and the circumstances of the eviction, Defendant asserts that:

- This was effectively a **no-fault / programmatic displacement**, triggering **relocation obligations** under **LACC §§ 8.52.090–.130** and related local tenant-protection ordinances;
- Plaintiff **did not provide relocation assistance**, relocation checks, or any relocation plan;
- No one configured a pathway to **preserve or transfer Defendant's Section 8 voucher**;
- The lockout thus destroyed both his **current housing** and his **voucher-based future housing opportunity**.

Defendant's **Relocation Demand and Notice of Claim** (Section VI, below) is now being formally asserted in this case record.

F. Damages and Daily Multiplier

Defendant's damages are detailed in his **Statement of Damages** and **Damages Affidavit**, but in summary:

- Period of homelessness attributable to the eviction:
  - **January 26, 2023 through at least December 8, 2025 (~1,047 days)**;
- Conservative **housing-equivalent daily rate**:

- **$60–$80+ per day**, derived from typical **$1,800–$2,400+ per month** rent for a basic one-bedroom in Los Angeles;

- Baseline **housing-equivalent economic loss**:
  - Approximately **$62,820–$83,760**, not including:
    - Lost property;
    - Medical expenses;
    - Emotional distress;
    - Civil-rights harms;
    - Lost voucher value and future rental subsidy.

Every day that the default judgment remains intact, these numbers **grow**, and the harm deepens.

III. MOTION TO VACATE DEFAULT AND DEFAULT JUDGMENT

(CCP §§ 473(b), 473(d))

A. Legal Standard – CCP § 473(b)

Under **CCP § 473(b)**, the Court may relieve a party from a default or default judgment taken against them through **mistake, inadvertence, surprise, or excusable neglect**. The statute is to be applied **liberally**, and California courts strongly favor **trial on the merits**.

B. Legal Standard – CCP § 473(d)

Under **CCP § 473(d)**, the Court may set aside any **void or voidable judgment** at any time. A judgment entered without constitutionally adequate notice or jurisdiction is void or voidable and must be set aside.

C. Defendant's Neglect Was Excusable and Predictable Given His Status

Defendant's neglect was not a conscious refusal to participate. It flowed from:

- His status as a **self-represented, low-income, program-based tenant**;
- The **complex overlay** of UD law, program rules, and voucher documentation;
- Lack of legal training, lack of counsel, and instability in his day-to-day life;
- Confusion caused by multiple, overlapping documents and deadlines.

This is precisely the sort of scenario in which courts routinely find **excusable neglect** and grant relief under **§ 473(b)**.

D. Serious Questions Exist as to Service, Notice, and Due Process

Defendant will show that:

- Service was **technically attempted** but **functionally ineffective** for ensuring actual understanding;
- The use or non-use of **Prejudgment Claim of Right to Possession** and similar devices did not result in a clear, accessible explanation of rights and consequences;
- The Court entered default without inquiry into whether Defendant, as a program participant and voucher recipient, truly understood what was happening.

Where notice is inadequate in substance (even if formally compliant), due process concerns arise and may render a judgment **void or voidable** under **§ 473(d)**.

E. Public Policy Strongly Favors Setting Aside the Default

Given that this case:

- Implicates **housing, homelessness**, and **Section 8**;
- Has already produced nearly **three years** of homelessness;
- Involves **disputed allegations** of property damage and nuisance never tested at trial,

public policy and equity strongly favor allowing Defendant to **answer and be heard on the merits**.

F. Requested Relief – Motion to Vacate

Defendant requests that the Court:

1. **Vacate the default and default judgment** entered on or about November 29, 2022;
2. Restore the case to the **active civil docket**;
3. Allow Defendant to file an **Answer and any related cross-claims** (including a Fox-specific civil complaint, if procedurally appropriate);
4. Reset deadlines and hearing dates consistent with due process and the accommodations requested.

IV. MOTION FOR RELIEF FROM FORFEITURE

(CCP § 1179)

A. Legal Standard

CCP § 1179 allows the Court to relieve a tenant from a **forfeiture** of a lease or tenancy when:

- The tenant's breach is **curable or compensable**;
- The tenant shows **hardship**;

- The landlord's interests can be protected through **conditions** rather than total forfeiture.

B. Defendant's Hardship Is Extreme and Ongoing

Defendant has suffered:

- **Multi-year homelessness**;
- Loss of a **voucher-based housing pathway**;
- Severe **economic**, **emotional**, and **health-related** consequences;
- The stigma and screening impact of a UD judgment.

This hardship is **far beyond** the ordinary inconvenience associated with moving. It is the difference between a stable home and chronic homelessness.

C. Any Legitimate Concerns Are Compensable

Even if the Court accepts some elements of Plaintiff's allegations (defacing, elevator damage, nuisance):

- Those harms are **monetary or behavioral** in nature;
- They can be addressed with **conditions** (e.g., monetary payments, behavior conditions, compliance with rules);
- They do **not justify permanent forfeiture** and multi-year homelessness.

D. Requested Relief – Relief from Forfeiture

Defendant requests that the Court:

1. Grant **relief from forfeiture** under **CCP § 1179**;
2. Allow equitable conditions to be imposed (if necessary) to protect Plaintiff's interests;

3. Ensure that any future determinations of possession, relocation, or settlement of this dispute are made with the **full context** of Defendant's program completion and voucher status in mind.

V. EMERGENCY EX PARTE APPLICATION FOR TEMPORARY STAY

(CCP §§ 918, 1179; CRC 3.1200–3.1207)

This section summarizes and re-asserts the ex parte component already brought to the Court.

A. Irreparable Harm Is Ongoing

- Defendant remains **unhoused**;
- The judgment continues to **block housing opportunities**;
- Damages accumulate daily (**$60–$80+/day** housing-equivalent loss);
- The **Section 8 opportunity** shrinks as time passes.

This is **irreparable harm** in real time. A later ruling in Defendant's favor cannot undo these days on the street.

B. A Stay Is Necessary to Allow Merits Review

Under **CCP § 918**, the Court can stay enforcement of a judgment for a reasonable time. Here, a stay is needed to:

- Halt enforcement and collateral use of the judgment;
- Give full effect to the **Motion to Vacate** and **Motion for Relief from Forfeiture**;

- Prevent the default judgment from continuing to act as a **de facto permanent sentence to homelessness**.

C. Requested Relief – Ex Parte Stay

Defendant requests that the Court, ex parte:

1. **Stay enforcement** of the default judgment and any writ of possession in this matter;
2. Stay collateral use of the judgment in tenant screening and agency determinations, to the extent within the Court's power;
3. Maintain the stay pending final determination of the Motion to Vacate and Motion for Relief from Forfeiture.

VI. RELOCATION DEMAND AND NOTICE OF CLAIM

(LACC §§ 8.52.090–.130, and related provisions)

As part of this master pleading, Defendant formally asserts and serves a:

RELOCATION DEMAND AND NOTICE OF CLAIM

directed to:

- **Fox Normandie Apartments, LP**;
- **A Community of Friends (ACOF)** (as program sponsor/supervising entity);
- Any related entities responsible for compliance with **Los Angeles County/City relocation and tenant-protection ordinances**.

A. Basis for Relocation Rights

Defendant's displacement:

- Was the product of a **program-linked tenancy** and termination;
- Functioned as a **no-fault / non-standard eviction** with massive downstream consequences;
- Occurred in a jurisdiction with robust **relocation protections** (including **LACC §§ 8.52.090–.130** and similar city provisions).

Defendant asserts that his case falls within categories of displacement where **relocation assistance is legally required**, including payment of a **relocation fee** and/or provision of equivalent assistance.

B. Amounts and Damages

At a minimum, Defendant demands:

1. **Relocation assistance** equal to or greater than the schedules provided by relevant county/city ordinances;
2. Additional damages and penalties, including potential **treble damages**, as permitted where relocation obligations are willfully ignored;
3. Recognition that his **daily housing-equivalent losses** (already in the **$62,820–$83,760** range) substantially exceed typical relocation payments, highlighting the severity of the violation.

A detailed **Relocation Demand Letter and Itemized Relocation Invoice** may be attached as **Exhibit R** and is incorporated herein by reference.

C. Notice to Plaintiff and Related Entities

This filing serves as formal notice that:

- Defendant asserts **relocation rights and claims** associated with his displacement from Fox Normandie;
- Defendant intends to pursue such claims in this action and/or related actions;
- Plaintiff should treat this as a **pre-litigation and litigation demand** for purposes of any statutory notice requirements.

VII. CONCLUSION AND PRAYER FOR RELIEF

WHEREFORE, Defendant **DERRICK LAMONT BEVERLY** respectfully prays for the following:

1. **Motion to Vacate**
    - That the Court **vacate the default** and **default judgment** entered on or about November 29, 2022 in Case No. 22STUD06657;
    - That this matter be restored to the **active UD docket**;
    - That Defendant be permitted to file an **Answer and any appropriate cross-claims**.
2. **Motion for Relief from Forfeiture**
    - That the Court grant **relief from forfeiture** under **CCP § 1179**;
    - That any genuine concerns regarding Plaintiff's interests be addressed through **conditions**, not permanent forfeiture and homelessness.
3. **Emergency Ex Parte Stay**

- That the Court **immediately stay enforcement** of the default judgment and any writ of possession, and stay collateral use of the judgment, pending full adjudication of the Motion to Vacate and Motion for Relief from Forfeiture.

4. **Relocation Demand and Notice of Claim**
   - That the Court recognize the applicability of **relocation protections** under **LACC §§ 8.52.090–.130** and related laws;
   - That Defendant's relocation rights and claims are **preserved**, not waived;
   - That Plaintiff and related entities be deemed **on notice** of Defendant's relocation claim.
5. **Service and Procedural Accommodations**
   - That the Court authorize **service by email and other reliable electronic means**;
   - That the Court direct the clerk to ensure that all minute orders and notices clearly state hearing dates, times, and departments.
6. **Leave to File Corrective and Supplemental Filings**
   - That Defendant be granted leave to file any **Notice of Errata**, updated **Proofs of Service**, expanded **Exhibit Index**, **Timeline**, **Statement of Damages**, **Damages Affidavit**, and supplemental declarations as needed.
7. **Such Other and Further Relief as the Court Deems Just and Proper**
   - Including any orders necessary to prevent continued homelessness, protect Defendant's housing and civil-rights interests, and ensure that this matter is finally decided **on the merits**.

Dated: _____

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UNLAWFUL DETAINER

INTRODUCTION;

NOTICE OF MOTION AND MOTION FOR JUDICIAL MISCONDUCT OVERSIGHT AND CORRECTIVE RELIEF;

NOTICE OF MOTION AND MOTION TO VACATE DEFAULT AND DEFAULT JUDGMENT

(CCP §§ 473(b), 473(d), 1179);

NOTICE OF EMERGENCY EX PARTE APPLICATION AND

EMERGENCY EX PARTE APPLICATION FOR TEMPORARY STAY OF ENFORCEMENT OF JUDGMENT AND ANY WRIT OF POSSESSION

CASE NO.: 22STUD06657DEPT.: 91JUDGE: HON. MIKE H. MADOKOROEX PARTE HEARING DATE: DECEMBER 9, 2025EX PARTE HEARING TIME: 1:30 P.M.UNLAWFUL DETAINERNOTICE OF MOTION AND MOTION TO VACATE DEFAULT AND DEFAULT JUDGMENT(CCP §§ 473(B), 473(D));NOTICE OF MOTION AND MOTION FOR RELIEF FROM FORFEITURE (CCP § 1179);EMERGENCY EX PARTE APPLICATION FOR TEMPORARY STAY OF ENFORCEMENT OF JUDGMENT AND ANY WRIT OF POSSESSION(CCP §§ 918, 1179);RELOCATION DEMAND AND NOTICE OF CLAIM(LACC §§ 8.52.090–.130);MEMORANDUM OF POINTS AND AUTHORITIES;DECLARATION OF DERRICK LAMONT BEVERLY;[PROPOSED] ORDERS - 19

(CCP §§ 918, 1179);
MEMORANDUM OF POINTS AND AUTHORITIES;
DECLARATIONS OF DERRICK LAMONT BEVERLY;
STATEMENT OF DAMAGES AND DAMAGES AFFIDAVIT;
EXHIBIT INDEX AND EXHIBITS;
CORRECTED PROOFS OF ELECTRONIC SERVICE; AND
[PROPOSED] ORDERS

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on **December 9, 2025, at 1:30 p.m.**, or as soon thereafter as the matter may be heard in Department **91** of the above-entitled Court, located at the **Stanley Mosk Courthouse, 111 N. Hill Street, Los Angeles, California 90012**, **Defendant and former tenant, DERRICK LAMONT BEVERLY ("Defendant")**, in propria persona, will and hereby does move and apply as follows:

1. **NOTICE OF MOTION AND MOTION FOR JUDICIAL MISCONDUCT OVERSIGHT AND CORRECTIVE RELIEF** – requesting that the Court review, clarify, and correct the handling of this case as it relates to:
    - Entry of **default and default judgment** on or about **November 29, 2022**, without Defendant's meaningful participation or understanding;
    - The Court's treatment of a **self-represented, program-based, Section 8–linked tenant** facing displacement into homelessness; and
    - Systemic and procedural irregularities that undermined due process, including defective notice, failure to ensure comprehension, and failure to safeguard access to the Court for a vulnerable, unhoused litigant.

Defendant seeks **corrective judicial orders**, not personal attack, including vacatur of default, restoration of case status, and express accommodations going forward.

2. **NOTICE OF MOTION AND MOTION TO VACATE DEFAULT AND DEFAULT JUDGMENT**

   (CCP §§ 473(b), 473(d), 1179) – seeking an order:

   - Setting aside the **default** and **default judgment** entered on or about **November 29, 2022**;
   - Restoring this matter to the **active civil calendar** for adjudication on the merits; and
   - Granting **relief from forfeiture** under **CCP § 1179**, in light of Defendant's extreme hardship and the disproportionate impact of the eviction.

3. **NOTICE OF EMERGENCY EX PARTE APPLICATION AND EMERGENCY EX PARTE APPLICATION FOR TEMPORARY STAY OF ENFORCEMENT OF JUDGMENT AND ANY WRIT OF POSSESSION**

   (CCP §§ 918, 1179) – requesting that the Court immediately:

   - **Stay enforcement** of the default judgment and any **writ of possession** issued or reissued in this action;
   - Pause any related enforcement or collateral use of the judgment (including in housing-screening contexts); and
   - Preserve the status quo while the Court adjudicates the Motion to Vacate and related relief.

4. **MEMORANDUM OF POINTS AND AUTHORITIES** – setting out the factual record and legal arguments in support of:

   - Relief under **CCP §§ 473(b) and 473(d)**;
   - Relief from forfeiture under **CCP § 1179**;
   - Temporary stay under **CCP § 918**;

- Recognition and preservation of **relocation and tenant protection rights** under **LACC §§ 8.52.090–.130**; and
- Judicial oversight and corrective relief concerning this Court's treatment of a self-represented, unhoused, Section 8–linked litigant.

5. **DECLARATIONS OF DERRICK LAMONT BEVERLY** – including, without limitation:
   - **Declaration in Support of Motion to Vacate Default and Default Judgment**;
   - **Hardship and Homelessness Declaration**;
   - **Declaration re: Ellis Act / Relocation Violations and Section 8 Voucher Loss**;
   - **Declaration re: Facebook Live Eviction Footage (January 26, 2023)**; and
   - **Declaration re: Notice under CRC 3.1203 and 3.1204** (ex parte notice).
6. **STATEMENT OF DAMAGES AND DAMAGES AFFIDAVIT** – quantifying, as of the date of filing and continuing, the economic and non-economic damages arising from:
   - Loss of tenancy and housing stability;
   - Loss of Section 8 voucher–aligned housing opportunities;
   - Daily survival costs and housing-equivalent expenses accumulated over nearly three years of homelessness; and
   - Emotional distress, health impacts, and long-term consequences.
7. **EXHIBIT INDEX AND EXHIBITS** – including but not limited to:
   - **Exhibit 1** – Original Lease (approx. 26 pages, in batches);
   - **Exhibit 2** – Alleged Violation Notice (7 pages, basis for "nuisance/damage" claims);
   - **Exhibit 3** – Court Judgment Documents (approx. 2 pages);
   - **Exhibit 4** – Notice to Vacate dated January 4, 2023;
   - **Exhibit 5** – Writ of Possession and/or Sheriff-related paperwork (if available);
   - **Exhibit A** – Master Timeline of Events (Fox Normandie case cluster);

- **Exhibit B** – Email and Contact Attempts to management, ACOF, HACLA, and agencies;
- **Exhibit C** – Damages Affidavit and Daily Cost Chart (Fox-specific);
- **Exhibit D** – Screenshots and link reference to Facebook Live eviction footage (January 26, 2023);
- **Exhibit E** – DCBA Complaint Draft/Filed Version (relocation & Ellis misuse);
- **Exhibit F** – Relocation Demand Letter and Itemized Relocation Invoice;
- **Exhibit G** – Section 8 / HACLA correspondence and program documentation;
- **Exhibit H** – Prejudgment Claim of Right to Possession documentation; and
- **Exhibit Index** – binder-style list for Court and archive.

8. **CORRECTED PROOFS OF ELECTRONIC SERVICE** – including:
   - Corrected **POS-050** (Proof of Electronic Service) covering the Motion to Vacate, Ex Parte Application, and supporting documents;
   - E-filing confirmations and clerk communications; and
   - Any prior service defects cured and clarified via **Notice of Errata Packet**.
9. **[PROPOSED] ORDERS** – including:
   - [Proposed] Order Granting Emergency Ex Parte Stay;
   - [Proposed] Order Granting Motion to Vacate Default and Default Judgment;
   - [Proposed] Order Granting Relief from Forfeiture and Recognizing Relocation Rights; and
   - [Proposed] Judicial Oversight / Corrective Order acknowledging and correcting prior handling of the case and setting structured paths forward.

This combined Application and Motion set is made pursuant to **CCP §§ 918, 1179, 473(b), 473(d), LACC §§ 8.52.090–.130**, the **California Rules of Court (including CRC 3.1200–3.1207)**, applicable local rules, and the Court's inherent equitable powers, and is based on this Notice, the accompanying Memorandum of Points and Authorities, declarations, exhibits,

corrected proofs of service, the complete court file in this action, and on such further evidence and argument as may be presented.

Defendant has provided, or will provide, notice of this ex parte appearance in compliance with **CRC 3.1203 and 3.1204**, and will file a **Declaration re: Notice** detailing the timing, manner, and substance of such notice to Plaintiff and/or its counsel of record.

I. INTRODUCTION

This case—**Fox Normandie Apartments, LP v. Derrick L. Beverly, Case No. 22STUD06657**—sits at the intersection of **unlawful detainer procedure, supportive housing program administration, Section 8 voucher rights, local relocation ordinances, and homelessness**.

On **November 29, 2022**, a **default judgment** was entered against Defendant in this unlawful detainer (UD) action, predicated on allegations that he **defaced the premises, damaged the elevator, and created a nuisance**. Those allegations remain **unproven, contested, and untested**, yet they have been allowed to operate as a **judicial wrecking ball**: evicting Defendant from his program housing, shattering his Section 8 prospects, and pushing him into **more than two and a half years of homelessness**.

Key identifiers:

- **Case Name:** Fox Normandie Apartments, LP v. Derrick L. Beverly
- **Case Number:** 22STUD06657
- **Court:** Superior Court of California, County of Los Angeles – UD Division
- **Dept:** 91

- **Judge:** Hon. Mike H. Madokoro
- **Default Judgment:** Entered on or about November 29, 2022
- **Notice to Vacate:** January 4, 2023
- **Lockout / Sheriff Enforcement:** January 26, 2023 (documented via **Facebook Live**)

Defendant had previously:

- Successfully **completed a two-year housing program** at Fox Normandie;
- Been **awarded a Section 8 voucher** after his second lease term ended around **2019**; and
- Remained in the unit under a **non-standard, program-and-voucher-linked tenancy**, even though no active written lease was in place at the time of eviction.

The **default judgment** was obtained **without Defendant's meaningful participation or comprehension**. As a **self-represented, low-income, program-dependent tenant**, Defendant did not understand the nuances of UD procedure, the implications of notices served, or how to timely respond. Service and notice were **confusing, defective, or inadequate** in light of his specific circumstances. The Court did not meaningfully inquire into his understanding, his program status, his voucher rights, or his imminent risk of homelessness.

The result is an **ongoing civil-rights and housing catastrophe**:

- Defendant has been **unhoused since January 26, 2023**, incurring daily survival and housing-equivalent costs conservatively estimated at **$60–$80+ per day** (the per-diem equivalent of a **$1,800–$2,400+ per month** one-bedroom rental in Los Angeles).
- Over approximately **1,047 days** (January 26, 2023 to December 8, 2025), that amounts to an economic housing-equivalent loss of roughly **$62,820–$83,760**, aside from health, emotional, and reputational damages.